

25NWCV04347 25NWCV04347

County: los-angeles

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Case Number: 25NWCV04347 Hearing Date: September 11, 2026 Dept: P

MIGUEL GONZALEZ v. AREA

51 KUSTOMS, INC., ET AL.

CASE NO.: 25NWCV04347

HEARING: 09/11/2026 @

9:30 AM

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TENTATIVE ORDER

I.

Plaintiff Miguel Gonzalez's motion to compel Defendant Andre Terrazas's responses to request for production of documents, set one is MOOT.

II.

Plaintiff's request for monetary sanctions against Defendant is DENIED.

Moving party to give notice.

Plaintiff Miguel Gonzalez (Plaintiff) moves to compel Defendant Andre Terrazas (Defendant) to produce responses to requests for production of documents (RPDs), set one.

Background

On December 8, 2025, Plaintiff filed this breach of contract action against Defendants Area 51 Kustoms, Inc., Andrea Terrazas, and Does 1 through 10. The form complaint alleges that Defendant breached a contract with Plaintiff to restore Plaintiff's vehicle and wrongfully detained Plaintiff's vehicle at Area 51 Kustoms, Inc. The complaint asserts two causes of action: (1) breach of contract and (2) fraud.

On April 9, 2026, default was entered as to Area 51 Kustoms, Inc.

Legal Standard

Under Code of Civil Procedure section 2031.260 subdivision (a), a party must respond to requests for production of documents within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (See Code Civ. Proc., § 2031.300, subd. (a).)

Discussion

Plaintiff moves to compel Defendant to provide responses to RPDs, set one.

Plaintiff served Defendant with RPDs, set one, on April 23, 2026, making responses due by May 23, 2026. (Gomez Decl., ¶ 3.) Defendant did not respond to Plaintiff's meet and confer letter requesting responses by July 1, 2026, and had not provided responses as of the date Plaintiff filed this motion. (Gomez Decl., ¶¶ 6-8.)

On August 27, 2026, Defendant, in pro per, did not file an opposition, but rather filed a declaration and his responses to requests for production of documents. Defendant's declaration appears to be related to the facts of this case rather than to the discovery requests. Defendant additionally provides his verified responses to RPDs, set one.

In reply, Plaintiff's counsel argues confirms receipt of the responses and makes substantive arguments arising out of them. Given that Plaintiff is in receipt of Defendant's verified responses, the proper motion to raise arguments about the substance of these responses is a motion to compel

further responses.

Accordingly, Plaintiff's motion to compel Defendant's responses to requests for production, set one is MOOT.

Sanctions

Plaintiff moves for monetary sanctions against Defendant for the failure to timely respond to RPDs, set one.

"[T]he court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2031.300, subd. (c).)

Based on Defendant's untimely responses and that Defendant did not unsuccessfully oppose this motion, the Court does not find monetary sanctions warranted.

Accordingly, Plaintiff's request for attorney's fees is DENIED.